

JASON M. BARBARA & ASSOCIATES, P.C.

EXHIBIT "B"

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

AFFIRMATION IN SUPPORT

-against-

Justice Assigned:
Hon. Frank Tinari

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Defendants.
-----X

1. John N. Cuomo, an attorney duly licensed to practice law in the State of New York,
affirms under penalties of perjury as follows:

2. I represent plaintiffs Diane C. DeSousa ("Mrs. DeSousa") and Thomas E. DeSousa
("Mr. DeSousa") (Mrs. DeSousa and Mr. DeSousa collectively "Plaintiffs") in the above-entitled
action.

3. As such I am fully familiar with the facts and circumstances of the above captioned
case, and I make the following statements based upon my personal knowledge and a review of the
file maintained by this office.

4. I submit this Affirmation in Support of Plaintiffs' Motion seeking to (1) dismiss
defendant Richard A. Calvagno II's First through Fifth Counterclaims in their entirety and
awarding attorney's fees as a sanction for committing a fraud upon the Court; or alternatively, (2)
granting summary judgment in favor of Plaintiffs pursuant to CPLR §3212(b) dismissing
defendant Richard A. Calvagno II's First through Fifth counterclaims in their entirety; and (3)
granting such other and further relief as this Court may deem just, proper, and equitable.

PRELIMINARY STATEMENT

5. Defendant Richard A. Calvagno II ("Calvagno") has committed a fraud upon this

Court and sanctions must be imposed striking and dismissing all his counterclaims. Plaintiffs commenced this nuisance action against Calvagno on January 8, 2021 (see Plaintiffs' Complaint; NYSCEF#2)¹. The origin of this case was due to, among other things, Calvagno idling and revving the engine of his high-performance Dodge Charger Hellcat, a vehicle that possesses in excess of 700 HP, in the early hours of 6 a.m. and 7 a.m. each morning. These acts caused the decibel levels inside Plaintiffs' home, which was located across the street, to reach more than 75 dB. Calvagno does not dispute his vehicle is loud (see NYSCEF#37 at 4). Thereafter, Calvagno would purposefully "take off" down the street; fully depressing the gas pedal, causing an even greater explosion of noise and vibrations that disrupted Plaintiffs' and other neighbors. This suit was commenced after Calvagno rejected Plaintiffs' multiple requests that he try to lessen the noise from his vehicle each morning.

6. In response to Plaintiffs' Complaint, Calvagno interposed an Answer with Counterclaims (the "Counterclaims") against the Plaintiffs 15 days after he was served with the Complaint (see NYSCEF#4). Calvagno swore under oath that Plaintiffs were "morally offended by [Calvagno's] homosexuality," slandered Calvagno with "offensive slurs like "faggot" and "homo" and "threatened his employment," among other facts in support of his counterclaims (NYSCEF#4 at 2-6). When questioned about the facts alleged in his Counterclaims, Calvagno testified that *all* the facts and events supporting his counterclaims occurred *after* Plaintiffs' commenced their lawsuit. None of the facts forming the basis of Calvagno's counterclaims even existed at the time he signed and verified his pleadings under oath on January 26, 2021. Not only did Calvagno lie at the inception of this case about events that never happened, but, in an attempt to rescue his obviously frivolous claims, has concocted facts to support his allegations after the

¹ See CPLR§ 2214(c).

fact.

7. The brazenness of Calvagno's actions, his lies, require swift intervention by this Court. Calvagno has not only disrespects the Court with his actions and words, but has shown he intends to use this proceeding to smear the reputation of Plaintiffs as retribution for commencing a meritorious suit against him. Calvagno has sought to make himself a victim of non-existent discrimination. He is using the Court as weapon to vindictively and unjustly sacrifice reputation of anyone he perceives as being in his way. The fraud committed upon this Court is of such significance that it must be sanctioned accordingly. Alternatively, even if this Court decides not to sanction his perjurious conduct, Calvagno's counterclaims also cannot withstand judicial scrutiny and must be dismissed.

BACKGROUND

8. Plaintiffs commenced this action by way of Summons and Complaint against Calvagno and Patrick J. Karcher on January 8, 2021, setting forth causes of action for private nuisance, public nuisance, nuisance per se, and intentional infliction of emotional distress (NYSCEF#2). Plaintiffs reside directly across the street from the property owned by defendants and occupied by Calvagno. Plaintiffs' claims relate to Calvagno's (1) tortious operation and use of his high-powered Dodge Charger Hellcat; (2) engagement in restricted commercial activity at his property, including boat slip rentals and catering; and (3) allowance of trash and debris to collect in front of his property. Calvagno interposed his Counterclaims on January 27, 2021 (NYSCEF#4).

9. As part of his answer, Calvagno alleges five counterclaims against the Plaintiffs, including (1) abuse of process, (2) discrimination or prima facie tort, (3) malicious prosecution, (4) private nuisance, and (5) harassment, menacing, and intentional infliction of emotional distress

(NYSCEF#4 at 2-6). The material allegations supporting Calvagno's Second, Third, Fourth and Fifth counterclaims are as follows:

"FOURTEENTH That the Plaintiffs are morally offended by [Calvagno's] homosexuality.

SIXTEENTH Indeed, and in the "requests" Plaintiffs' refer to in paragraph 42 of his Complaint and others, the Plaintiff has verbally abused and attacked the Defendant slandering him with offensive slurs like "faggot," "homo" and other intolerant affronts too offensive to repeat herein.

SEVENTEENTH Plaintiff has also approached other neighbors, similarly slandering the Defendant with Plaintiff's prejudicial slurs, to enlist the support of neighbors.

TWENTY-FIFTH Plaintiff(s) has harassed and menaced the Defendant, followed him to his place of employment where he screamed obscenities meant to menace, shame and intimidate the Defendant, and to also threaten his employment."

TWENTY-SIXTH Plaintiff's harassment, annoying and menacing behavior also includes Plaintiff waiting outside Defendant's home in the morning, shouting obscenities and threats as Defendant exits his home and leaves for work, and or parking his car in front of Defendant's driveway to block Defendant from leaving for work.

(NYSCEF#4 at 2-6).

10. As part of discovery, Calvagno turned over videos supporting his counterclaims, the most relevant of which captured two verbal disputes – one between Mr. DeSousa and Calvagno, and Calvagno's parents and Mr. DeSousa in the other. It is undisputed these incidents occurred months after Calvagno submitted his Counterclaims.

11. The first incident occurred on May 20, 2021. It is undisputed that on such date and time, Mr. DeSousa is taking video of Calvagno's vehicle idling in the driveway from the front yard of his property. At the approximate 38 second mark, Calvagno can be heard saying "keep taking pictures asshole" at Mr. DeSousa, provoking him to respond. At no point does Mr. DeSousa use offensive slurs like "faggot," or "homo."

12. The second incident occurred on May 22, 2021. It is undisputed that on such date

and time, Mr. DeSousa and Calvagno's father are observed having a verbal argument regarding Calvagno's vehicle. Again, Mr. DeSousa does not use offensive slurs like "faggot," or "homo."

13. Calvagno also provided videos purporting to show an incident where Mr. DeSousa blocked his commercial tow truck so he could not leave for work. It is undisputed that these videos were taken during the pendency of this litigation and after Calvagno had interposed his counterclaims. Notably, Calvagno's commercial tow truck was purposely parked in front of Plaintiffs' home.

14. In addition, Calvagno disclosed a report he made to the police on November 4, 2020. A copy of the November 4, 2020 Police Report is annexed hereto as Exhibit A. It indicates that Calvagno reported Mr. DeSousa does not like that he "warms up his vehicle in the morning" and his "neighbors yells at him and video tapes when he starts his car." The report ends with police advising Mr. DeSousa it is not illegal for Calvagno to warm his vehicle in the morning.

15. Calvagno was deposed on May 11, 2023 and August 1, 2023. A copy of the minutes from Calvagno's May 11, 2023 and August 1, 2023 depositions are annexed hereto as Exhibit B.² At his deposition, Calvagno testified that he initially had a "normal neighbor relationship" with the Plaintiffs and even invited them to attend social gatherings at his home several times, which they attended (B25-26). Prior to Plaintiffs commencement of this lawsuit, there were never any negative interactions between the parties (B167). Calvagno also testified that Mr. DeSousa never made any comments about him being openly gay or made other prejudicial comments about him prior to this lawsuit (B157-158).

16. Calvagno testified that he had reviewed and read his counterclaims and that

² All references to Exhibit B shall be identified as "B" followed by the relevant page number of the transcript (e.g. "B2-5").

“everything in there is true to [his] knowledge” (B144-145). The counterclaims were verified by Calvagno under oath on January 26, 2021 (NYSCEF#4 at 2-6). When questioned about the underlying facts supporting his counterclaims, Calvagno testified “everything was after the lawsuit” because “[p]rior to [Calvagno] being served the papers [the parties] never had any negative interactions” (B167).

17. With respect to his Fourteenth and Sixteenth allegations, accusing Plaintiffs’ of being “morally offended” by his homosexuality, and using slurs against him, Calvagno testified that these allegations are based entirely on disparaging remarks made by Mr. DeSousa (B151). As to Mrs. DeSousa, Calvagno testified he never had an argument with her, nor had she made any homophobic or disparaging remarks toward him. Notwithstanding, Calvagno testified he believed she was also offended by his homosexuality and inferred such remarks against her (B151-152).

18. As evidence supporting his Fourteenth and Sixteenth allegations, Calvagno testified that there was an incident where Mr. DeSousa called him a “stupid faggot” and told him he was going “to fuck [him] where [he] breathes” (B146). Calvagno testified that there were no witnesses present during this argument (B146, 154) nor any video (B153). He further testified that he could not recall the specific date Mr. DeSousa made these statements (B146) but it occurred “a few years ago” (B146) *after* the lawsuit started (B157). Calvagno also testified that Mr. DeSousa had referred to him as a “homo” or “faggot” during other altercations (B153). However, Calvagno agreed there were no witnesses nor any video evidence of Mr. DeSousa ever using the word “faggot” or “homo” towards him (B153-154). Calvagno testified that these purported statements all occurred after the lawsuit started as well (B157).

19. With respect to his Seventeenth allegation, claiming Plaintiffs slandered him with prejudicial slurs to other neighbors, Calvagno testified that Mr. DeSousa, not Mrs. DeSousa,

purportedly approached other neighbors about him (B155). Calvagno testified that this claim was based on Mr. DeSousa presenting a petition to them purportedly “about [Calvagno’s] house” regarding “this lawsuit” (B155). Calvagno never saw the petition, and admitted there are no prejudicial slurs made against him involving this lawsuit (B156). In fact, this petition was not related to this suit, but an Article 78 involving another neighbor, Vincent Camarda, who Calvagno has listed as a witness in this case (see *Schneider, et al. v. Zoning Board of Appeals, et al.*, Index No. 618623/2021).

20. With respect to his Twenty-Fifth allegation, claiming Plaintiffs followed him to his place of employment and threatened his employment, Calvagno testified that this related only to Mr. DeSousa, not Mrs. DeSousa (B161). Calvagno testified that Mr. DeSousa unsuccessfully followed him to work on one occasion (B162-163). Calvagno could not recall the exact date of this incident but testified that it happened after this lawsuit commenced (B162). Calvagno claimed Mr. DeSousa “tailgated” him, “flashed his lights,” and yelled “fuck you, mother fucker” while he was stopped behind him (B163).

21. Finally, Calvagno testified that his claim Mr. DeSousa threatened his employment was based on a subpoena issued relating to this lawsuit during discovery (B168). This subpoena was issued more than 2.5 years *after* Calvagno made this allegation under oath. Calvagno admitted that Mr. DeSousa never threatened his employment prior to the lawsuit (B169).

ARGUMENT

I. CALVAGNO’S COUNTERCLAIMS SHOULD BE DISMISSED AS A SANCTION FOR COMMITTING A FRAUD ON THE COURT

22. “A court has inherent power to address actions which are meant to undermine the truth-seeking function of the judicial system and place in question the integrity of the courts and our system of justice” (*CDR Creances S.A.S. v. Cohen*, 23 N.Y.3d 307, 15 N.E.3d 274 (2014)).

“Fraud on the court involves willful conduct that is deceitful and obstructionistic, which injects misrepresentations and false information into the judicial process “so serious that it undermines ... the integrity of the proceeding” (*Id.* citing *Baba-Ali v. State*, 19 N.Y.3d 627, 975 N.E.2d 475 (2012)).

23. “In order to demonstrate fraud on the court, the nonoffending party must establish by clear and convincing evidence that the offending party has acted knowingly in an attempt to hinder the fact finder's fair adjudication of the case and his adversary's defense of the action” (*Cohen*, 23 N.Y.3d 307 at 320) (internal citations and quotations omitted). “A court must be persuaded that the fraudulent conduct, which may include proof of fabrication of evidence, perjury, and falsification of documents concerns issues that are central to the truth-finding process (*Id.* at 320). Essentially, a fraud upon the court requires a showing

“that a party has sentiently set in motion some unconscionable scheme calculated to interfere with the judicial system's ability impartially to adjudicate a matter by improperly influencing the trier or unfairly hampering the presentation of the opposing party's claim or defense”

(*Id.* at 321)

24. “A finding of fraud on the court may warrant termination of the proceedings in the nonoffending party's favor” (*Cohen*, 23 N.Y.3d 307 at 321). For “when a party lies to the court and [its] adversary intentionally, repeatedly, and about issues central to the truth-finding process, it can fairly be said that [the party] has forfeited [the] right to have [the] claim decided on the merits” (*Id.*). “Therefore, once a court concludes that clear and convincing evidence establishes fraud on the court, it may strike a pleading and enter a default judgment.” *Id.* at 321.

25. There is no dispute regarding Calvagno's perjurious conduct in this case. Calvagno admitted that on January 26, 2021 he falsely swore under oath to facts that had not existed (see

CPLR § 3020(a) (“a verification is a statement under oath that the pleading is true to the knowledge of the deponent.”)). Such falsities formed the material facts underlying his counterclaims (see NYSCEF#4 at 2-6). These knowingly false allegations directly establish Calvagno’s deceitful and obstructionistic intent in this case.

26. Calvagno’s perjury further calls into question the integrity of this proceeding, particularly the truthfulness of his discovery disclosures and testimony concerning events that purportedly occurred after he filed his Counterclaims. His testimony is the only evidence supporting the bias he claims motivated the Plaintiffs to commence this action (B146, 153-154). Notably, Calvagno does not reference any discriminatory conduct by Plaintiffs in the single police report he filed (Exhibit A). It is apparent he has and will continue to make up the facts supporting his Counterclaims – just as he did on January 26, 2021 when he lied under oath. Neither this Court nor Plaintiffs can effectively proceed in this case while Calvagno continues to lie and mislead about “issues that are central to the truth-finding process” (*Cohen*, 23 N.Y.3d 307).

27. Finally, Calvagno’s falsification of evidence was not inadvertent, a mistake, or even an isolated instance of perjury that warrants a lesser sanction. He intentionally made these false claims at least eight separate times in his pleadings and repeated these falsities throughout his deposition. Calvagno’s lies are pervasive and were intended for a nefarious and improper purpose – namely, to destroy the reputation and credibility of Plaintiffs and undermine their claims against him. Calvagno’s perjury and fabrication of evidence has irreparably damaged the integrity of this proceeding and hindered Plaintiffs’ ability to defend against his claims. As a result, Calvagno should be sanctioned for his intolerable and perjurious conduct.

28. For all the reasons set forth above, this Court should dismiss Calvagno’s counterclaims in their entirety and award attorneys’ fees as a sanction for the frauds he has

committed upon the Court, in addition to any other remedy the Court deems necessary.

II. SUMMARY JUDGMENT SHOULD BE GRANTED IN FAVOR OF PLAINTIFFS' DISMISSING CALVAGNO'S COUNTERCLAIMS IN THEIR ENTIRETY

A. Standard for Summary Judgment

29. On any motion for summary judgment, the moving party must make a prima facie showing of its entitlement to judgment as a matter of law by the submission of evidentiary proof in admissible form sufficient to establish the absence of any material, triable issue of fact (CPLR §3212(b); *Jacobsen v. New York City Health & Hosps. Corp.*, 22 N.Y.3d 824, 11 N.E.3d 159 (2014)). “[O]n a motion for summary judgment, facts must be viewed in the light most favorable to the non-moving party” (*Id.*). If the moving party meets this burden, the burden then shifts to the non-moving party to “establish the existence of material issues of fact which require a trial of the action” (*Id.*).

30. As set forth below, Plaintiffs’ are entitled to judgment as a matter of law dismissing Calvagno’s counterclaims in their entirety as there is no material, triable issue of fact.

B. Calvagno’s Abuse of Process Claim Must Be Dismissed

31. A plaintiff asserting a cause of action for abuse of process must prove that there was “(1) regularly issued process, either civil or criminal, (2) an intent to do harm without excuse or justification, and (3) use of the process in a perverted manner to obtain a collateral objective.” *Curiano v. Suozzi*, 63 N.Y.2d 113, 469 N.E.2d 1324 (1984).

32. Here, Calvagno asserts Plaintiffs’ “maliciously” commenced this action and made false claims to Calvagno, the police, and other local officials “complaining of the acts set forth in the complaint” (NYSCEF#4 at 2-3). New York law is clear that “the institution of a civil action by summons and complaint is not legally considered process capable of being abused.” Therefore,

commencement of an action, even with malicious intent, is insufficient (*Id.*).

33. Furthermore, even though Calvagno alleges Plaintiffs made false claims to the police, this also does not establish a claim for abuse of process. (*Liss v. Forte*, 96 A.D.3d 1592, 947 N.Y.S.2d 270 (4th Dep't 2012) stating “[a]lthough plaintiff submitted evidence indicating that defendant may have filed a false criminal complaint against him out of spite, a malicious motive alone ... does not give rise to a cause of action for abuse of process”).

34. Notwithstanding, Calvagno provided no evidence that Plaintiffs’ made false claims to the police and other local officials. Annexed hereto as Exhibit C are two police reports from Mr. DeSousa made on May 26, 2021 and February 11, 2022, complaining of Calvagno’s reckless driving and the excessive noise from his vehicle. To prove these claims were false, Calvagno submitted a single police report that states Plaintiffs were advised it was not “illegal” for Calvagno to warm up his car (Exhibit A). Calvagno erroneously purports this report to be evidence that Plaintiffs’ claims to the police were false. However, this report fails to directly address the claims made by Plaintiff, which involve the *excessive noise, conditions and vibrations* generated by Calvagno. Notably, in Plaintiffs’ May 26, 2021 report, the police advise Mr. DeSousa to “call [the police] when [Calvagno’s] car is idling so that [they] may respond and *take action if needed*” (Exhibit C), thereby refuting the single report submitted by Calvagno.

35. Calvagno’s evidence is also contradicted by complaints made by other neighbors regarding the same conduct. Annexed hereto as Exhibit D, is a police report from Plaintiffs’ neighbor, Elizabeth Ranker, made on February 19, 2022. In the narrative section of the report, it notes that Ranker called to complain that Calvagno was operating his vehicle in a reckless manner. Police also note that “[they] are aware of [Calvagno] operating in a reckless manner in the past” (Exhibit D). Additionally, annexed hereto as Exhibit E, are email communications between

Plaintiff and two former neighbors, Pat Schneider and James Veneziano, complaining about the noise generated from Calvagno's vehicle. Therefore, there is no material dispute that Plaintiffs' statements to the police were truthful.

36. Calvagno has also failed to establish the "gist of the action for abuse of process" which is "the improper use of process after it is issued" (*Curiano v. Suozzi*, 63 N.Y.2d 113, 469 N.E.2d 1324 (1984) citing *Williams v. Williams*, 23 N.Y.2d 592, 246 N.E.2d 333 (1969)). Calvagno has produced no evidence that the Summons and Complaint was used improperly after it was issued. Instead, Calvagno exclusively relies on his claim that Plaintiffs acted maliciously in bringing the action and purportedly made false claims "complaining of the acts set forth in the complaint." These claims, however, do not give rise to a cause of action for abuse of process (*Hauser v. Bartow*, 273 N.Y. 370, 7 N.E.2d 268 (1937)).

37. Accordingly, summary judgment should be awarded in favor of the Plaintiffs' dismissing Calvagno's First Counterclaim for abuse of process.

C. Calvagno's Second Counterclaim Must Be Dismissed

38. At the outset, Calvagno's Second Counterclaim should be dismissed for failing to comply with the pleading requirements under the CPLR. Under CPLR §3013, a "pleading shall be sufficiently particular to give the court and parties notice of the transactions, occurrences, or series of transactions or occurrences, intended to be proved and the material elements of each cause of action or defense." CPLR §3014 also requires that "[s]eperate causes of action or defenses shall be separately stated and numbered..." While pleadings shall be liberally construed, defects shall not be ignored if a substantial right of a party is prejudiced (CPLR §3026). "A party suffers prejudice where he or she 'has been hindered in the preparation of his [or her] case or has been prevented from taking some measure in support of his [or her] position'" (*Scholastic Inc. v. Pace*

Plumbing Corp., 129 A.D.3d 75, 8 N.Y.S.3d 143 (1st Dep't 2015)).

39. Here, Calvagno's Second Counterclaim is inadequately pleaded because he failed to state the claim he alleges and its material elements. Instead, Calvagno asserts a laundry list of predominantly inapplicable claims without identifying the exact claim he alleges against Plaintiffs. Specifically, Calvagno alleges:

"Plaintiffs' Complaint is borne of their own hate filled prejudice and discrimination and forms the basis of intentional torts and other offenses arising from their prejudices, hate and discrimination and violation of all laws protecting against such conduct..."

(NYSCEF#4 at 4).

40. Calvagno's broad references to "intentional torts," "other offenses" and "all laws" not only fails the liberal pleading requirements under the CPLR but also prejudices Plaintiffs by hindering its ability to defend against whatever claim Calvagno seeks to be asserting here. Accordingly, Calvagno's Second Counterclaim should be dismissed.

41. Alternatively, if the Court finds his Second Counterclaim properly alleges a claim for discrimination or a prima facie tort, the Court should grant summary judgment in favor of the Plaintiffs. First, discrimination is not an actionable tort claim (*Matter of Jennifer Amorosi v. South Colonie Independent Central School District*, 9 N.Y.3d 367, 372, 849 N.Y.S.2d 485, 880 N.E.2d 6 (2007)). Nor is it a crime (see, e.g., New York State Human Rights Law, § 291). Therefore, to the extent this counterclaim seeks to recover under a discrimination theory of liability, it must be dismissed.

42. Calvagno has also failed to establish a claim for prima facie tort. The elements of prima facie tort include (1) intentional infliction of harm, (2) resulting in special damages, (3) without excuse or justification, (4) by an act or series of acts which are otherwise legal (*Diorio v.*

Ossining Union Free Sch. Dist., 96 A.D.3d 710, 946 N.Y.S.2d 195 (2d Dep't 2012) (internal citations omitted). Additionally, the complaining party must establish that it has suffered a specific and measurable loss, which requires an allegation of special damages (*Del Vecchio v. Nelson*, 300 A.D.2d 277, 751 N.Y.S.2d 290 (2d Dep't 2002)).

43. Central to a prima facie tort claim is that the plaintiff's intent was motivated solely by malice or "disinterested malevolence" (*Simae v. Levi*, 22 A.D.3d 559, 802 N.Y.S.2d 493 (2d Dep't 2005)). Therefore, it must be shown that there were special damages and that malevolence was the sole motivating factor (*Burns Jackson Miller Summit & Spitzer v. Lindner*, 59 N.Y.2d 314, 332-333, 464 N.Y.S.2d 712, 451 N.E.2d 459 (1983)). The Court of Appeals has explained that "the genesis which will make a lawful act unlawful must be a malicious one unmixed with any other and exclusively directed to injury and damage of another" (*Id.*).

44. Here, Calvagno has failed to produce any evidence that the Plaintiffs' suit was motivated *solely* by malice. Calvagno testified that his Second Counterclaim was based entirely on disparaging remarks made by Mr. DeSousa (B151) – all of which purportedly occurred *after* the commencement of this lawsuit. Calvagno was clear that prior to this case, [the parties] never had any negative interactions" (B167) nor did Plaintiffs make any comments about Calvagno's sexual identity (B157-158). Therefore, there is no evidence that Plaintiffs' Complaint was motivated solely by malice. Calvagno also failed to establish special damages. Calvagno did not allege nor provide any evidence of special damages, including evidence of medical expenses, lost wages, loss of future income, property damage, or any other economic losses incurred due to Plaintiffs' alleged conduct.

45. For all the reasons set forth above, summary judgment should be awarded in favor of the Plaintiffs' dismissing Calvagno's Second Counterclaim.

D. Calvagno's Malicious Prosecution Claim Must Be Dismissed

46. At the outset, Calvagno's Verified Answer with Counterclaims again violates the pleading requirements under CPLR §3013 and §3014. Calvagno fails to specifically set forth the elements and facts constituting his malicious prosecution claim. However, even if this Court finds he properly alleges a claim for malicious prosecution, summary judgment should be granted in favor of Plaintiffs' dismissing this claim.

47. The elements of the tort of malicious prosecution of a civil action are (1) the institution of an action or proceeding, (2) malice as the motivating factor, (3) an absence of probable cause to support the proceeding, and (4) termination of the proceeding in favor of the claimant (*Butler v. Ratner*, 210 A.D.2d 691, 619 N.Y.S.2d 871 (3d Dep't 1994)) (internal citations omitted). Additionally, to establish a claim for malicious prosecution, a party must also allege and prove special injury (damages) (*Kaufman v. Kaufman*, 206 A.D.3d 805, 170 N.Y.S.3d 577 (2d Dep't 2022)). "Failure to establish any one of these elements defeats the entire claim" (*Brown v. Sears Roebuck & Co.*, 297 A.D.2d 205, 208, 746 N.Y.S.2d 141 (1st Dep't 2002))

48. Generally, the filing of an action is not a process legally capable of being abused, and there is no specific allegation made here as to what Plaintiffs supposedly did wrong after filing its action. Plaintiffs' motives were solely to bring peace back to their lives, and not for any other purpose. Other than Calvagno's nonsensical assertion Plaintiffs hated his sexuality, Calvagno has not suggested, let alone shown, that Plaintiffs began this action due to a wrong or improper motive, something other than a desire to see the ends of justice served. (*Nardelli v. Stamberg*, 44 N.Y.2d 500, 377 N.E.2d 975 (1978)).

49. "Probable cause consists of such facts and circumstances as would lead a

reasonably prudent person in like circumstances to believe plaintiff guilty” *Colon v. City of New York*, 60 N.Y.2d 78, 455 N.E.2d 1248 (1983). “Because obviously less in the way of grounds for belief will be required to justify a reasonable man in bringing a civil rather than a criminal suit, when the underlying action is civil in nature the want of probable cause must be patent.” *Butler v. Ratner*, 210 A.D.2d 691, 619 N.Y.S.2d 871 (3d Dep’t 1994).

50. Here, Calvagno failed to establish actual malice or a lack of probable cause justifying Plaintiffs’ commencement of this suit. Calvagno’s malice claim is predicated on his false and incredible claims that Plaintiffs’ were “morally offended” by his homosexuality. However, Plaintiffs have properly shown they have been adversely affected by Calvagno’s behavior, including from his excessively loud automobile, which not only produces noise but also resonates with deep, powerful reverberations, causing negative impacts on each of them. The positioning of Calvagno’s car, with its exhaust directed towards the Plaintiffs’ residence, creates a situation akin to facing a cannon that goes off every morning. Calvagno’s claim that the Plaintiffs’ objections are “malicious” is merely an effort to diminish their status, significance and worth, all while trying to elevate his status to that of a martyr with fictional claims of attacks upon his job and sexual orientation. Also, all of the purported facts alleged by Calvagno in support of this claim occurred *after* the commencement of this lawsuit and therefore, could not be a motivating factor necessary to establish a claim for malicious prosecution.

51. Furthermore, Plaintiffs have properly shown that there was probable cause to commence the instant nuisance action against Calvagno. The excessive noise generated by Calvagno’s vehicle each morning is a violation of state and local law. Both VTL §375(31)(a) and the Village of Amityville Code §114-3 prohibit excessive or unusual noise. The Village of Amityville Code also prohibits trash and debris from collecting in the street (§97-9) and

commercial activity in B Residence Districts where the property is located (§183-43).

52. As evidence supporting the various nuisances and violations of law perpetrated by Calvagno, Plaintiffs have submitted photographs depicting decibel readings taken from inside their home of the noise generated by Calvagno's vehicle exceeding 75 dBa, as well as police reports and other complaints by neighbors (see Exhibits C, D, E and F); photographs depicting garbage and other debris at Calvagno's property and in the street (see Exhibit G); photographs depicting an excessive number of boats parked at Calvagno's private slip (see Exhibit H); and over two dozen videos capturing the noise generated by Calvagno's vehicle and the constant mess at his property.

53. Plaintiffs' were also deposed in this case. Annexed hereto as Exhibit I are the minutes from Mr. DeSousa's May 3, 2023 deposition.³ Mr. DeSousa testified that Calvagno's "car exploded every morning (I35); he contacted the police concerning the excessive noise generated from Calvagno's vehicle (I26-27); Calvagno recklessly operated his vehicle in front of Plaintiffs' home (I31); the police parked up the block to catch Calvagno (I28-29); he observed an excessive number of boats being stored at Calvagno's slip (I45); people traveling to and from their boats in Calvagno's backyard (I46); observed Calvagno holding parties and using catering trucks and tables (I47); observed construction debris and random trucks parked all over the property for extended periods (I49-50); was required to hire an exterminator to treat the insects and vermin at his home caused by Calvagno's conduct (I52); and people using Calvagno's property consistently parked in front of Plaintiffs' home (J59-60) and blocked their driveway (I61).

54. The minutes from Mrs. DeSousa's August 10, 2023 deposition are also annexed

³ All references to Exhibit I shall be identified as "I" followed by the relevant page number of the transcript (e.g. "I2-5").

hereto as Exhibit J. Mrs. DeSousa testified that Calvagno's vehicle sounds like a "rocket taking off" each morning (Exhibit J at 10); the sound of the vehicle starting every morning shakes her bed (Exhibit J at 11); Calvagno speeds up the block in his car (Exhibit J at 11-12); and she has stopped taking walks in front of her house because of his behavior (Exhibit J at 13).

55. There is no dispute that Plaintiffs' evidence and testimony substantiate that the instant action was commenced upon probable cause and was not motivated by any malice by Plaintiffs. Accordingly, Calvagno has not raised a triable issue of fact on his malicious prosecution claim. See *Pirro v. Bd. of Trustees of Vill. of Groton*, 203 A.D.3d 1263, 164 N.Y.S.3d 699 (3d Dep't 2022). Additionally, Calvagno also failed to allege and establish special damages. See *People's Cap. & Leasing Corp. v. 1 800 Postcards, Inc.*, 162 A.D.3d 560, 80 N.Y.S.3d 19 (1st Dep't 2018).

56. For all the reasons set forth above, summary judgment should be awarded in favor of the Plaintiffs' dismissing Calvagno's malicious prosecution claim.

E. Calvagno's Private Nuisance Claim Must Be Dismissed

57. The elements of a private nuisance cause of action are an interference (1) substantial in nature, (2) intentional in origin, (3) unreasonable in character, (4) with a person's property right to use and enjoy land, (5) caused by another's conduct in acting or failure to act (*Aristides v. Foster*, 73 A.D.3d 1105, 901 N.Y.S.2d 688 (2d Dep't 2010)). The interference "must not be fanciful, slight or theoretical, but certain and substantial, and must interfere with the physical comfort of the ordinarily reasonable person" (*Matteliano v. Skitzki*, 85 A.D.3d 1552, 1553, 925 N.Y.S.2d 276 (4th Dept. 2011), lv denied 17 N.Y.3d 714, 2011 WL 4977184 (2011)).

58. "Not every annoyance will constitute a nuisance. Nuisance imports a continuous invasion of rights—a pattern of continuity or recurrence of objectionable conduct" (*Aristides v.*

Foster, 73 A.D.3d 1105, 901 N.Y.S.2d 688 (2d Dep’t 2010)). “Except for the issue of whether the plaintiff has the requisite property interest, each of the other elements is a question for the jury, unless the evidence is undisputed” (*Redwood Prop. Holdings, LLC v. Christopher*, 211 A.D.3d 758, 177 N.Y.S.3d 895 (2022)).

59. Here, Calvagno has failed to establish a claim for private nuisance. Calvagno asserts that Plaintiffs’ committed a private nuisance by alleging a public nuisance against him and by attempting to enlist the neighbors support in connection with this case (NYSCEF#4 at 5). In support of this claim, Calvagno testified that Mr. DeSousa approached two neighbors to get them to sign a petition based on this lawsuit (B155-156, 159-160).

60. First, as set forth in Section (D) above, Plaintiffs’ commencement of this action was not unreasonable, but made in good faith with probable cause. Calvagno further undermined this claim by admitting Mr. DeSousa did not interfere with his right to enjoy or use his land (B160). Furthermore, although Plaintiffs’ dispute that the petition presented to the neighbors was related to this lawsuit, however, assuming, *arguendo*, that it was, a legal petition does not rise to the level of a continuous and substantial interference needed to constitute a private nuisance. Plaintiffs’ conversation with two individuals, as Calvagno contends, regarding this lawsuit, is not a pattern of continuity or recurrence of objectionable conduct (*Aristides v. Foster*, 73 A.D.3d 1105, 901 N.Y.S.2d 688 (2d Dep’t 2010)). This claim by Calvagno only reiterates his perjurious conduct as he admits he never even saw the petition presented to his neighbors (B156).

61. For all the reasons set forth above, summary judgment should be awarded in favor of the Plaintiffs’ dismissing Calvagno’s private nuisance claim.

F. Calvagno’s Fifth Counterclaim Must Be Dismissed

62. On his Fifth Counterclaim, Calvagno alleges that Plaintiffs’ are “guilty of

harassment, menacing, intentional infliction of emotional distress, and similarly related torts” (NYSCEF#4 at 6). Initially, Calvagno’s reference to “similarly related torts” is insufficient and must be dismissed (CPLR §3013 and §3014).

63. Next, Calvagno improperly seeks to recover on a harassment cause of action. New York does not recognize a common law cause of action for harassment. *Edelstein v. Farber*, 27 A.D.3d 202, 811 N.Y.S.2d 358 (1st Dep’t 2006); *Ralin v. City of New York*, 44 A.D.3d 838, 844 N.Y.S.2d 83 (2nd Dep’t 2007); *Santoro v. Town of Smithtown*, 40 A.D.3d 736, 835 N.Y.S.2d 658 (2nd Dep’t 2007). The undersigned is also unable to find any case discussing or acknowledging a common law cause of action for menacing.

64. However, to the extent the Court finds Calvagno appropriately alleges a claim for assault, Calvagno has failed to establish a claim for assault against Plaintiffs. “To sustain a cause of action to recover damages for assault, there must be proof of physical conduct placing the plaintiff in imminent apprehension of harmful contact.” *Fugazy v. Corbetta*, 34 A.D.3d 728, 825 N.Y.S.2d 120 (2d Dep’t 2006). Here, Calvagno produced evidence of a single verbal dispute between him and Mr. DeSousa. Such evidence, however, shows that Calvagno *initiated* the verbal dispute with Mr. DeSousa, who never left his property or approached Calvagno (B76-77). While Calvagno incredibly claims that there was another dispute between the two parties in the road where Mr. DeSousa purportedly used offensive slurs, allegations of screaming and threats alone fail to establish that physical contact was reasonably imminent (*Joon Song v. MHM Sponsors Co.*, 176 A.D.3d 572, 111 N.Y.S.3d 581 (1st Dep’t 2019)).

65. Finally, Calvagno also failed to establish a claim for intentional infliction of emotional distress. “In order to establish intentional infliction of emotional distress, the plaintiff must prove four elements: (1) extreme and outrageous conduct (2) intent to cause, or disregard of

a substantial probability of causing, severe emotional distress; (3) a causal connection between the conduct and injury; and (4) severe emotional distress. The tort of intentional infliction of emotional distress predicates liability on the basis of conduct which is “so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community” (*Murphy v. Am. Home Prod. Corp.*, 58 N.Y.2d 293, 448 N.E.2d 86 (1983); *Marilyn S. v. Indep. Grp. Home Living Program, Inc.*, 73 A.D.3d 895, 904 N.Y.S.2d 70 (2d Dep’t 2010)). “[T]he requirements of the rule are rigorous, and difficult to satisfy” (*Howell v. New York Post Co.*, 81 N.Y.2d 115, 612 N.E.2d 699 (1993)). The conduct must consist of more than mere insults, indignities and annoyances (*Harville v. Lowville Cent. Sch. Dist.*, 245 A.D.2d 1106, 667 N.Y.S.2d 175 (4th Dep’t 1997)). Without “sufficiently outrageous” conduct, no claim for intentional infliction of emotional distress can be established (*Id.*).

66. Here, Calvagno alleges Plaintiffs’ waited outside his home, shouted obscenities and threats when he would leave for work, parked their car in front of his driveway to block him from leaving for work, followed him to work, and threatened his employment (NYSCEF#4 at 5-6). First, Calvagno submitted no evidence that Mr. DeSousa “waited outside his home.” The parties live directly across the street from one another (B166). It is undisputed that Mr. DeSousa was either present on or inside his property during their purported disputes or when he recorded Calvagno engaging in conduct relevant to the claims in this case. Furthermore, Calvagno testified that the videos he submitted show the incidents where Mr. DeSousa shouted obscenities and threats at him (B166). As discussed, there is only one video showing a verbal dispute between Mr. DeSousa and Calvagno, which was initiated and caused by Calvagno (B77). While Calvagno testified that there were “maybe two or three” other incidents that were not captured by video, he admitted that he shouted obscenities as well, revealing the reciprocal nature of these arguments

and Calvagno's culpability (B166-167).

67. Calvagno's claim that Mr. DeSousa threatened his employment was related to a single subpoena issued on Westbury Jeep, a customer of his employer, during discovery in this case (B169). This subpoena was made in response to a letter Calvagno provided from Westbury Jeep as evidence in this case. Calvagno further alleges that Mr. DeSousa blocked his driveway and prevented him from going to work. However, Calvagno testified that he could not recall the date this occurred, there is no surveillance of the incident, and, importantly, he was able to exit his driveway to leave for work (B170-171).

68. Finally, Calvagno testified that on one occasion, after the lawsuit started, when he pulled out of his driveway, Mr. DeSousa had also pulled out of his driveway at the same time (B161-162). Calvagno testified that Mr. DeSousa followed him to work although Mr. DeSousa did not actually follow him all the way to his place of employment (B162). He testified that Mr. DeSousa then "tailgated," "flashed his lights," and yelled "fuck you, mother fucker" when he was stopped behind him (B163). It is important to note that this claim is particularly incredible considering the extreme noise generated by his vehicle's exhaust system.

69. To summarize, Calvagno testified he had approximately "two to five" verbal disputes with Mr. DeSousa, one of which was captured by video and initiated by Calvagno, and another which occurred between Mr. DeSousa and Calvagno's parents; Mr. DeSousa once unsuccessfully blocked his driveway; and finally, once followed him in his vehicle closely, flashed his lights, and cursed at him. A handful of instances of alleged conduct – conduct which Calvagno similarly engaged in against Plaintiffs (e.g. cursing and yelling obscenities and parking in front of Plaintiffs' home) – is not "so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency (*compare with, Flamm v. Van Nierop*, 56 Misc. 2d 1059, 291

N.Y.S.2d 189 (Sup. Ct. 1968) (outrageous conduct found where defendant dashed at the plaintiff in a threatening manner in various public places, with 'threatening gestures, grimaces, leers, distorted faces and malign looks,' accompanied by 'ridiculous utterances and laughs'; driven his automobile behind that of the plaintiff at a dangerously close distance; walked closely behind, or beside, or in front of the plaintiff on the public streets; and constantly telephoned the plaintiff at his home and place of business and either hung up or remained on the line in silence)).

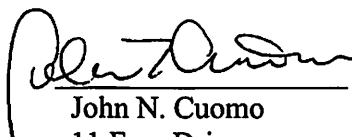
70. For all the reasons set forth above, summary judgment should be awarded in favor of the Plaintiffs' dismissing Calvagno's Fifth Counterclaim.

CONCLUSION

WHEREFORE, for all the foregoing reasons, summary judgment should be awarded in favor of the Plaintiffs' dismissing Calvagno's Counterclaims in their entirety together with such other, further and different relief this Court deems to be just and proper.

Dated: Commack, New York
May 28, 2024

Yours, etc.,



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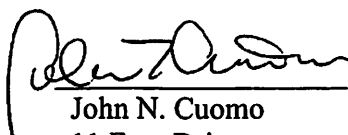
CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that foregoing Affirmation was completed using a word processing system and that I have relied on that system's word count in preparing this certification and word count:

The total words, excluding those permitted to be excluded (caption, signature block) is 6,907.

Dated: Commack, New York
May 28, 2024

Yours, etc.,



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